

The Cyprus Problem in an Era of Uncertainty: Establishing a Culture of Engagement

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PCC REPORT 5/2019



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Report 5/2019

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ISBN: 978-82-7288-983-7 (online)

ISBN: 978-82-343-0033-2 (print)

Photo cover: Home for Cooperation archives

Production and Cover design: Crystal Graphics

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ACKNOWLEDGEMENTS

First and foremost, I would like to thank Harry Tzimitras, the Director of PRIO Cyprus Centre, for inviting me to take part in this exciting project. I am also indebted to Natalia Mirimanova for her help and guidance on the project and for discussing practical aspects of ‘engagement without recognition’. Likewise, I would like to thank Tom de Waal for sharing his thoughts on engagement processes, especially in the Caucasus. I am also grateful to Fiona Mullen, Neophytos Loizides and Charis Psaltis for their assistance. Finally, I would like to thank the many people who shared their thoughts on the Cyprus Problem and possible next steps.

NOTE ON TERMINOLOGY

This report adheres to standard international practice regarding the use of terms relating to Cyprus. The only internationally recognised state in Cyprus is the Republic of Cyprus. The northern 36 per cent of the island is not under the effective control of the Republic. Instead, since 1974, it has been under the effective control of Turkey and the Turkish Cypriot community. In 1983, the Turkish Cypriots unilaterally declared independence, creating the 'Turkish Republic of Northern Cyprus'. To date, the 'TRNC' has only been recognised by Turkey. Colloquially, it is known as 'Northern Cyprus' to Turkish Cypriots, and northern Cyprus internationally. The Green Line refers to the dividing boundary between the area under the effective control of the Cyprus Government and northern Cyprus. It is not recognised internationally as a border. While only the Republic of Cyprus is a member of the United Nations, in the context of the settlement process, the UN acknowledges the existence of two communities, the Greek Cypriot community and the Turkish Cypriot community.

EXECUTIVE SUMMARY

For over fifty years, the international community, led by the United Nations (UN), has attempted to find a settlement to the so-called Cyprus Problem. The most recent of these efforts collapsed in July 2017, following a major international conference with representatives from Britain, Greece and Turkey – the Guarantor Powers – and the European Union (EU). Notwithstanding the assessment of the UN Secretary-General that the prospects for a settlement remain alive, there has been little evidence that a new process will begin soon. Meanwhile, the United States has suggested that it is concerned about the indefinite prolongation of the UN peacekeeping mission in Cyprus without tangible evidence that a comprehensive solution can in fact be found. This raises very real concerns about the future of the island. There is a growing realisation that the status quo in Cyprus, as well as in the wider region, is untenable. In particular, the growing encroachment of Turkey in the north of the island, coupled with evidence of an increasing number of Turkish Cypriots leaving the island, may well make reunification all but impossible within the next decade or so.

Many observers, both on the island and abroad, therefore believe that urgent steps must be taken to encourage the two communities to engage more actively with one another in order to keep settlement hopes alive. The difficulty is that steps designed to ease contacts between the two communities are viewed with deep suspicion by the Cypriot Government. Many Greek Cypriots believe that the Turkish Cypriots will try to use efforts to ease their isolation as a means to try to legitimise the 'Turkish Republic of Northern Cyprus' ('TRNC'). While no one would argue that such fears concerning recognition are baseless, they must be put in perspective. The Turkish Cypriot unilateral declaration of independence has been declared illegal by the United Nations Security Council. This has also been reaffirmed by the International Court of Justice. There is no indication that the wider international community will change its position on recognition, even if there is greater engagement with the Turkish Cypriots as a community. At the same time, it should be emphasised that recognition cannot be accidental. It must always involve intent. This offers a very significant degree of latitude for interaction. In recent years, the concept of 'engagement without recognition' has gained growing attention from scholars and policy makers alike as it provides an opening for various forms of cooperation in cases like Cyprus. Rather than a specific set of precise policy initiatives that can be adopted across different cases, the concept is centred on a change of approach to secessionist conflicts. Based on the understanding that the isolation of separatist territories can be counter-productive and

make a settlement even more elusive, the concept is about exploring the ways in which linkages can be built by adhering to the principle of non-recognition. A considerable amount can be achieved with the right political will and a degree of flexibility.

As this report shows, there are various initiatives that can be pursued in Cyprus that would open the way for greater engagement between the communities. Most importantly, there needs to be a fundamental change of approach at the political level. More needs to be done by the leaders of the communities to encourage Greek and Turkish Cypriots to interact with one another. The island's political leaders need to foster a culture of engagement on the island. Interaction between members of the two communities should not be seen as unpatriotic or suspect. Instead, it should be actively encouraged. This could include establishing incentives for such initiatives, such as providing grants for bicommunal activities, as well as challenging the negative climate that exists within the media towards those who wish to pursue initiatives that bring members of the two communities together. More also needs to be done to implement agreements and initiatives that have already been agreed. This includes linking mobile telephony networks and opening new crossing points. Other areas where change is needed concerns approaches to the past, and to the future. The two communities need to engage more on issues of missing persons, but also start to think about how jointly to address points of current and future concern, such as migration and the effects of climate change. Also, the culture of engagement needs to be encouraged within the Cypriot communities abroad.

Finally, this change of culture needs to be underpinned by greater external support and encouragement. The United Nations Security Council should look to reaffirm Resolution 541 and 550, and other relevant resolutions that affirm that the sovereignty of the Republic of Cyprus as the only recognised state on the island remains respected and is not open to question. However, it is also important that the requirement for greater cooperation is formalised as a precondition for ongoing international engagement with the settlement process. To this extent, the efforts of the two communities to promote reconciliation and interaction between the people of Cyprus should be tracked and assessed by the UN Secretary-General and be incorporated into future regular reports to the Security Council on peacekeeping and settlement efforts. Likewise, efforts to encourage greater engagement between the two communities should also be actively supported by other interested parties, such as the European Union.

Cyprus and the international community face a stark political reality. The situation on the island is changing. Urgent steps must be taken to promote greater contacts between the communities. However, this can only be done with the right political will.

INTRODUCTION

Despite numerous efforts to reach a settlement, Cyprus remains one of the most stubbornly intractable conflicts on the international stage. For over fifty years, the international community, acting through the United Nations, has sought to reach a viable and lasting agreement to end the so-called Cyprus Problem. Sadly, despite the best efforts of seven Secretaries-General,¹ the island remains divided. Nevertheless, over the years, there have been several opportunities to resolve the issue. The best-known of these was the 2001-2004 UN initiative that saw the then UN Secretary-General, Kofi Annan, present the two sides with a draft settlement proposal (the so-called Annan Plan). While widely welcomed by the international community, the Annan Plan was overwhelmingly rejected by the Greek Cypriot community in a referendum held just prior to the island's accession to the European Union, on 1 May 2004.² In the fifteen years or so since then, attempts to find a settlement have continued. The most recent effort to try to bridge the differences between the two communities collapsed in July 2017, following an intensive period of UN-sponsored negotiations in the Swiss mountain resort of Crans Montana.

While the absence of a meaningful settlement process is a familiar situation for long-standing observers, the status quo carries costs for both communities. Well over a hundred thousand Greek Cypriots continue to be denied access to their land and property. For the Turkish Cypriots, the current situation means that they remain isolated – economically, politically, and culturally – from the wider world. Meanwhile, both communities continue to feel the insecurity that comes with the presence of a militarised dividing line on the island. In addition, there is a growing realisation that the dynamics on the island, as well as across the wider Eastern Mediterranean region, are changing. Throughout the 1980s, 1990s and the first few years of the 2000s, the political environment was fairly static. While the division of the island created a general environment of tension and mistrust, not just between the two communities, but also between Greece and Turkey, the situation was nevertheless relatively stable – a few notable incidents notwithstanding.³ This period was underpinned

¹ U Thant (1961-1971), Kurt Waldheim (1972-1981), Javier Perez de Cuellar (1982-1991), Boutros Boutros Ghali (1992-1996), Kofi Annan (1997-2006), Ban Ki-moon (2007-2016), Antonio Guterres (2017-Present).

² The vote took place on 24 April 2004. The Turkish Cypriot community voted by 66 per cent to support the plan. However, 76 per cent of Greek Cypriots voted against it.

³ Perhaps the most serious incident occurred in August 1996, when violence broke out along the Green Line that led to the deaths of two young Greek Cypriot men. 'Violence erupts at funeral of Greek Cypriot', *The Irish Times*, 15 August 1996.

by a secular Republic of Turkey that, while politically chaotic, was nevertheless anchored to the West as an important member of NATO and an aspiring member of the European Union.

However, over the past decade the situation on the island, and across the wider region, has been transformed. The continued estrangement of the two communities, which is now well into its third generation, coupled with demographic changes to the Turkish Cypriot community and the population in northern Cyprus, are increasingly altering the very nature of any Cyprus settlement. Whereas once there was a sense of familiarity about the situation on the island and stability concerning the parameters of a settlement, this is now starting to change dramatically. Secondly, Turkey has shifted its domestic and external political direction. It is no longer tied to the West in the way that it once was. At home, it has embarked on a more authoritarian course under the leadership of President Recep Tayyip Erdogan. At the same time, Turkey's foreign policy orientation has changed enormously. EU membership no longer seems to be a realistic prospect. Its ties to NATO and the United States are also frayed. Increasingly, there are real questions about its future within the Western alliance.⁴ Ankara is ever-more focused on developing its influence elsewhere, such as Africa and the Balkans, and building stronger ties with Russia and China. As a result of these factors, the old assumptions about the nature of the status quo are increasingly being thrown into doubt. Even if Turkey is not necessarily abandoning the West, its foreign policy is becoming increasingly unpredictable and ad hoc.

Now, more than ever, steps need to be taken to keep settlement hopes alive. There is an urgent need for measures to build trust between the two communities, limit Turkey's growing influence over the north and create opportunities for young Turkish Cypriots so that they choose to stay on the island, rather than seek new lives elsewhere. However, efforts to build greater ties between the two communities, as well as between the Turkish Cypriots and the wider world, are hampered by the Turkish Cypriot unilateral declaration of independence, in November 1983. Although this act of secession was immediately and unequivocally condemned by the UN Security Council, which instructed the international community not to recognise the so-called 'Turkish Republic of Northern Cyprus', the Cypriot Government has nevertheless dedicated considerable effort to preventing the Turkish Cypriot state from gaining acceptance on the international stage in the decades that have followed. These efforts have not only included steps to prevent formal recognition by third countries, they have also sought to prevent the Turkish Cypriots from engaging with the outside world across a range of other economic, cultural and sporting activities. While the underlying rationale for these policies is understandable – and, in fairness, until 2003, the Turkish Cypriots community's isolation was also the product of the policies of the Turkish Cypriot leadership, which also sought to keep the communities apart – it has nevertheless

⁴ Michael Binyon, 'Where next for Turkey in Nato?', *The Times*, 15 August 2018.

led to the isolation of the Turkish Cypriot community. Not only has this undermined trust between the two communities, and further encouraged young Turkish Cypriots to emigrate, it has also made the Turkish Cypriots ever more reliant on Turkey. In other words, the policy of isolation has gradually encouraged the trends that are making a settlement all the more difficult to achieve.

This same phenomenon has been seen in a variety of other conflicts, especially the disputes in the South Caucasus. It is now widely accepted that isolating separatist territories in the hope that they may simply relent under pressure can do far more harm than good. It not only undermines the trust between the sides and make the seceding entity even less likely to want to reconcile with the state it has broken away from, it can also make it more reliant on an outside patron. As a result, there are now a range of mechanisms and processes that can be used in such situations. In particular, the concept of 'engagement without recognition' is seen as an increasingly important concept for both scholars and policy practitioners alike in secessionist disputes. Rather than trying to change the essential dynamics of the conflict by introducing initiatives that could be seen to legitimise the authorities of the breakaway territory, the idea is to open up channels of communication in a way that explicitly respects the sovereignty of the internationally recognised state but also acknowledges the value of ensuring that the seceding territory is not isolated, and thus forced it into an ever-closer relationship with an external actor that may have vested interests in maintaining the status quo. As will be shown, there are a number of ways that this can be achieved. But most importantly, it requires a change of mindset amongst policy makers. Building on this concept of 'engagement without recognition', the report examines the need for greater engagement between the two communities and explores some of the ways in which the wider culture of engagement on the island could be changed. It does so by following principles that have been used in Cyprus already, or that have been developed elsewhere.

On a final note, this study respects two fundamental principles of the international approach to the Cyprus Problem. First and foremost, it is not trying to secure recognition for the 'TRNC', either overtly or covertly. The suggestions and recommendations contained in this study are intended to be in line with relevant Security Council resolutions, most notably Resolution 541 (1983) and 550 (1984). Secondly, it does not question the nature of any eventual settlement. It has been agreed by the sides that any settlement will be centred on the creation of a bizonal, bicomunal federation. This report adheres to that model.

THE EVOLUTION OF THE CYPRUS ISSUE

In 1955, the Greek Cypriot community, representing 78 per cent of the population, launched an armed campaign to end over 75 years of British colonial rule and secure the island's political unification with Greece (*enosis*). In response, the Turkish Cypriot community, accounting for 18 per cent of the population, called for the island to be partitioned between Greece and Turkey (*taksim*).⁵ In 1959, a compromise was reached by the Greek and Turkish governments. Cyprus would become an independent state. Power would be shared by the two communities according to a complex constitutional arrangement. Meanwhile, the United Kingdom, Greece and Turkey – the so-called Guarantor Powers – would be responsible for ensuring the sovereignty and independence of the new state.

The Republic of Cyprus came into existence on 16 August 1960. Despite hopes the two communities could forge a new relationship, a number of disputes opened up between the Greek and Turkish Cypriots. For example, disagreements arose over the formation of separate municipalities in major towns and the structure of the armed forces. In late-1963, Archbishop Makarios, the President of Cyprus and leader of the Greek Cypriot community, presented proposals for 13 constitutional amendments. These were immediately rejected by Turkey. Days later, on 21 December 1963, fighting erupted in Nicosia, the island's capital. This soon spread to several other towns around Cyprus. As a result, and for reasons still strongly disputed by the communities to this day, the Turkish Cypriots effectively ceased to be part of the state institutions of the Republic. Meanwhile, the Guarantor Powers agreed to put in place a temporary military force to try to quell the fighting and create the conditions for a peace conference in London. When this failed, the matter was referred to the United Nations. On 4 March 1964, the UN Security Council passed Resolution 186. This created a peacekeeping force for the island (UNFICYP) and mandated the appointment a mediator to oversee political dialogue between the communities. These UN talks continued in one form or another over the next decade.

In July 1974, following tensions between Athens and Nicosia, the military government in Greece ordered the overthrow of President Makarios. Five days later, on 20 July, Turkey launched a military invasion. By the middle of August, 36 per cent of the island was under

⁵ The remaining four per cent of the island's population was made up of members of the island's three religious communities: the Maronites, Armenians and Latins.

Turkish control. 160,000 Greek Cypriots had been forced to flee their homes. Meanwhile, in the months that followed tens of thousands of Turkish Cypriots left the areas still under the control of the Cypriot Government and moved north to the areas under Turkish military control, where, in 1975, the Turkish Cypriot leadership established the 'Turkish Federated State of North Cyprus' ('TFSC'). Three years later, in 1977, the leaders of the two communities, Archbishop Makarios and Rauf Denktaş, agreed that any future settlement of the Cyprus issue would be based on the creation of a bizonal, bicomunal federation. This was confirmed again in 1979 and endorsed by the United Nations Security Council.⁶ To this day, these two 'High Level Agreements' are considered to form the essential parameters of a settlement.

THE UNILATERAL DECLARATION OF INDEPENDENCE AND NON-RECOGNITION

Despite the agreement to pursue a federal settlement, the Turkish Cypriot leadership unilaterally declared independence on 15 November 1983.⁷ The 'Turkish Republic of Northern Cyprus' ('TRNC', or 'KKTC' in Turkish) was immediately recognised by Turkey. However, the United Nations Security Council condemned the act of secession. United Nations Security Council Resolution 541, passed on 20 November 1983, deplored 'the declaration of the Turkish Cypriot authorities of the purported secession of part of the Republic of Cyprus', and explicitly called on, 'states not to recognize any Cypriot State other than the Republic of Cyprus'. This call was subsequently reconfirmed by UN Security Council Resolution 550, passed on 11 May 1984, which reiterated that member states should not, 'recognize the purported State of the "Turkish Republic of Northern Cyprus" set up by secessionist acts and...not to facilitate or in any way assist the aforesaid secessionist entity.'

As a result of these resolutions, the Turkish Cypriots found themselves isolated on the international stage in the years that followed. For instance, the International Civil Aviation Organisation (ICAO) has refused to accept the inclusion of any airport in northern Cyprus.⁸ This means that there are no direct international flights. Instead, aircraft flying to and from the north of the island have to pass through Turkey. This has limited tourism, which is nevertheless a mainstay of the Turkish Cypriot economy. Also, trade between the Turkish Cypriot community and the rest of the world is limited. In 1993, the European Court of

⁶ The first reference to the 'High Level Agreements' was made in United Nations Security Council Resolution 410, 15 June 1977.

⁷ For an account of the events leading up to this, see James Ker-Lindsay, 'Great Powers, Counter Secession, and Non-Recognition: Britain and the 1983 Unilateral Declaration of Independence of the "Turkish Republic of Northern Cyprus"', *Diplomacy and Statecraft*, Volume 28, Number 3, 2017, pp.431-453

⁸ See International Civil Aviation Organisation (ICAO), Doc 7910/168, 'Location Indicators', June 2018. The only three international airports in Cyprus are Nicosia, Larnaca and Paphos.

Justice ruled that direct trade with northern Cyprus was impermissible.⁹ This too has had a drastic effect on the Turkish Cypriot economic development as it meant that any trade that could take place had to pass through Turkey. As a result, the Turkish Cypriots became ever more reliant on Turkey's support. To this day the Turkish Cypriot administration is supported by a significant direct grant from Ankara. Meanwhile, other forms of contact have also been limited or prohibited over the 35 years since the unilateral declaration of independence. For example, Turkish Cypriot sports teams are barred from international competitions. At the same time, the Cypriot Government has waged a concerted diplomatic effort to prevent the recognition of the 'TRNC'. In real terms, this means that anything that could be remotely construed as recognition of the Turkish Cypriot state is strongly and immediately challenged.¹⁰

As well as the effects of the restrictions placed on the Turkish Cypriots by the international community, to a degree the isolation the community faced was also self-imposed. The estrangement of the two communities was also encouraged by Rauf Denktash, who deliberately sought to prevent contact between the two communities. For example, from 1974 until 2003, the sole legal crossing point between the two sides was in Nicosia. Meanwhile, other changes also started to have an effect of the Turkish Cypriot community. Most notably, the period after 1974 saw the arrival of settlers on the island from Turkey,¹¹ in direct contravention of international law prohibiting such demographic changes. Alongside the presence of a substantial Turkish military force on the island, estimated to be in the region of 30,000-40,000 troops, this further strengthened Turkey's control over the Turkish Cypriot community.

EU ACCESSION AND THE PARTIAL ENDING OF TURKISH CYPRIOT ISOLATION

Despite the unilateral declaration of independence, talks continued between the communities under the UN auspices. In 1993, the discussion over the future of the island changed radically when the Republic of Cyprus applied to join the European Union. Despite claims from the Turkish Cypriots that membership would violate the prohibition on Cypriot membership of any organisation that did not include both Greece and Turkey, the European Commission gave a positive opinion on the application and membership talks began in 1995. This

⁹ For an analysis on this see Stefan Talmon, 'The Cyprus Question before the European Court of Justice', *European Journal of International Law*, Volume 12, Number 4, 2001, pp.727-750.

¹⁰ For more on the efforts of the Cypriot Government to prevent the recognition of the 'TRNC', see James Ker-Lindsay, *The Foreign Policy of Counter Secession: Preventing the Recognition of Contested States* (Oxford: Oxford University Press, 2012). See also Sotos Zackheos, *Cyprus Diplomacy: A Personal Testimony* (Athens: Livanis Publications, 2010)

¹¹ For a recent analysis of this in the immediate aftermath of 1974, see Helge Jensehaugen 'Filling the Void': Turkish Settlement in North Cyprus, 1974-1980', *Settler Colonial Studies*, Volume 7, Number 3, 2017, pp.354-371

prompted Turkey and the Turkish Cypriot to announce that they would replicate any moves between the Republic of Cyprus and the EU. At one point, Turkey even threatened to annex northern Cyprus. Nevertheless, the accession process eventually served as a catalyst for a major new UN initiative that began in 2001. In March 2004, just weeks before Cyprus was due to join the European Union, the UN unveiled a comprehensive settlement proposal for the island: the Annan Plan.¹² On 24 April, the two sides held a referendum on the Plan. The UN proposals were accepted by the Turkish Cypriot community, which voted in favour of the agreement by 66 per cent. However, following a call by President Tasos Papadopoulos for the Plan to be rejected, 76 per cent of Greek Cypriots voted against the proposals. As a result, on 1 May 2004, the Republic of Cyprus joined the European Union still divided. Crucially, however, it was understood that the whole of the island had joined the EU, but, at the request of the Cypriot Government, the application of the *acquis communautaire*, the EU's body of laws, would be suspended in the areas that were deemed not to be under the effective control of the Republic of Cyprus.

By this stage, the isolation of the Turkish Cypriots had eased somewhat. In April 2003, restrictions on crossing the Green Line were lifted by the Turkish Cypriot authorities. For the first time in decades, Greek and Turkish Cypriots could travel across the island relatively freely – although many Greek Cypriots chose not to do so because of the requirement to show an identity card or passport to the Turkish Cypriot authorities. Meanwhile, many Turkish Cypriots took advantage of their right to Republic of Cyprus citizenship, which in turn made them European Union citizens and thereby gave them the right to live and work across the EU.

In view of Turkish Cypriot support for the Annan Plan, other steps were taken to try to ease their community's isolation on the international stage. In his report to the Security Council, on 28 May 2004, the UN Secretary-General noted that the Turkish Cypriot vote in favour of reunification, had 'undone whatever rationale might have existed for pressuring and isolating them...In this context and for that purpose and not for the purpose of affording recognition or assisting secession, I would hope they [the members of the Security Council] can give a strong lead to all States to cooperate both bilaterally and in international bodies to eliminate unnecessary restrictions and barriers that have the effect of isolating the Turkish Cypriots and impeding their development, deeming such a move as consistent with Security Council resolutions 541 (1983) and 550 (1984).'¹³ Others also took up the call. The Organisation of Islamic Cooperation (OIC) upgraded the Turkish Cypriot

¹² For an overview of the process and the Annan Plan, see Frank Hoffmeister, *The Legal Aspects of the Annan Plan and EU Accession* (Leiden: Martinus Nijhoff, 2006); James Ker-Lindsay, *EU Accession and UN Peacemaking in Cyprus* (Basingstoke: Palgrave Macmillan, 2005); Claire Palley, *An International Relations Debacle: The UN Secretary-General's Mission of Good Offices in Cyprus 1999–2004* (Oxford: Hart Publishing, 2005); Andrekos Varnava and Hubert Faustmann (editors), *Reunifying Cyprus: The Annan Plan and Beyond* (London: I.B.Tauris, 2011).

¹³ 'Report of the Secretary-General on his Mission of Good Offices in Cyprus', UN Security Council Document S/2004/437, 28 May 2004, Paragraphs 90 and 93.

status from the 'Turkish Cypriot community'; which it had used since admitting the Turkish Cypriots as observers in 1979, to the 'Turkish Cypriot State'.¹⁴ Since then it has called upon its members to increase economic and cultural contacts with the Turkish Cypriots.¹⁵ The Turkish Cypriots were also granted observer status in the Parliamentary Assembly of the Council of Europe.

However, in other areas, steps to ease the isolation of the Turkish Cypriots have only been partially realised. An EU initiative to try to develop closer ties to the Turkish Cypriot community by opening up direct trade between northern Cyprus and the European Union was prevented when it became clear that it violated EU law.¹⁶ Instead, exports would have to pass through the areas controlled by the Cypriot government. The EU has also found that various other initiatives have been difficult to put into effect, often due to the objections of the Cypriot Government.¹⁷ Meanwhile, in other areas, the long-standing isolation remained very much in force. For example, direct flights to northern Cyprus remained blocked, as have various other forms of economic, political, sporting and cultural interaction with the outside world.

THE BREAKDOWN OF TALKS AND THE CURRENT IMPASSE

In the aftermath of the failure of the Annan Plan, several efforts were made to restart settlement talks. However, it was not until Nicos Anastasiades and Mustafa Akinci assumed the leadership of the Greek and Turkish Communities, in 2013 and 2015 respectively, that a realistic prospect for a new process arose. In late 2016, following over a year of direct negotiations, the leaders met for a series of discussions in the Swiss mountain resort of Mont Pelerin. There they appeared to move closer together on a range of key outstanding issues, including territory and governance. This provided the United Nations with the confidence to move the process into what was expected to be its final stage: the convening of a major international conference to wrap up the discussions between the two communities on the key internal issues, and involve the three Guarantor Powers in a negotiation

¹⁴ Resolution No.6/31-P, 31st Session of the Islamic Conference of Foreign Ministers, Istanbul, 14-16 June 2004. Importantly, in 2004, a major summit between the EU and the OIC, which was due to be held in Istanbul, was cancelled after the Turkish Government tried to include the Turkish Cypriot State on the list of participants, a move that was rejected by the EU. 'Ankara cancels EU, OIC meeting: Row over Turkish Cypriots', *AFP*, 1 October 2004.

¹⁵ For example, Resolution No.7/38-Pol, The Situation in Cyprus', 38th Session of the Council of Foreign Ministers, Astana, Republic of Kazakhstan, 28-30 June 2011, '4. Calls upon the Member States to strengthen effective solidarity with the Turkish Muslim people of Cyprus, closely associating with them, and with a view to helping them materially and politically to overcome the inhuman isolation which has been imposed upon them, to increase and expand their relations in all fields; 5. Invites the Member States in this framework: - to exchange business delegations with the Turkish Cypriot side with a view to exploring the opportunities of economic cooperation, investment in the areas such as direct transport, tourism, information; - to develop cultural relations and sports contacts with the Turkish Cypriot people; - to encourage cooperation with the Turkish Cypriot universities, including the exchange of students and academicians;

¹⁶ For an analysis of the legal issues in the case, see Nikos Skoutaris, *The Cyprus Issue: The Four Freedoms in a Member State under Siege* (Oxford: Hart Publishing, 2011).

¹⁷ For an overview of EU activities with the Turkish Cypriots see George Kyris, *The Europeanisation of Contested Statehood: The EU in northern Cyprus* (Farnham: Ashgate, 2015).

on the security aspects of any agreement. The first part of this conference took place in Geneva, on 16 January 2017. This was followed, six months later, by an intensive 10 days of discussions in Crans Montana. However, on 6 July, after a tense final meeting between the leaders and the representatives of Britain, Greece and Turkey, the talks broke up without a final agreement between the sides. While the exact sticking points have not been revealed, in his report to the Security Council a few months later, the UN Secretary-General, Antonio Guterres, said that an 'historic opportunity' to settle the Cyprus Problem had been missed.¹⁸

Following the end of the talks, there has been repeated speculation as to when new discussions between the sides could begin. While some felt that the process could resume again relatively soon, others felt that it would be more appropriate to restart discussions after the presidential elections in the Republic of Cyprus, which eventually saw Anastasiades re-elected as Greek Cypriot leader. When that failed to produce the much-anticipated breakthrough, it was then suggested that the completion of general elections in Turkey, which saw Recep Tayyip Erdogan elected to a new executive presidency, could provide the catalyst for a resumption of negotiations between the two communities. However, that too failed to spark new talks. In the meantime, the United States began to make it clear that it was increasingly unhappy with the idea of UN peacekeeping missions being allowed to operate in perpetuity. With this in mind, Washington suggested that it might vote against a future authorisation for UNFICYP.¹⁹ In July 2018, the United Nations Secretary-General, Antonio Guterres, appointed a consultant – Jane Holl Lute, a former US Deputy Secretary of Homeland Security – to look at whether the conditions exist for a resumption of settlement talks.²⁰ On 15 October, Guterres presented his report to members of the Security Council. Crucially, he noted:

I believe that prospects for a comprehensive settlement between the communities on the island remain alive, notwithstanding the well-known history of the UN's efforts to broker peace between the communities and the remaining work that the parties must undertake to overcome the challenges that have, to date, impeded resolution.²¹

However, while the prospects for a settlement may remain alive, two years after the break-up of the last direct talks, it is far from clear when new negotiations will begin.

¹⁸ 'Report of the Secretary-General on his mission of good offices in Cyprus', United Nations Security Council Document S/2017/814, 28 September 2017.

¹⁹ 'UN pondering Unficy's fate', *The Cyprus Mail*, 30 April 2017; 'UNFICYP to stay another six months but it could be the last chance', *The Cyprus Mail*, 26 July 2018.

²⁰ 'UN assigns Lute to conduct consultations on Cyprus', *The Cyprus Mail*, 3 July 2018.

²¹ 'Report of the Secretary General on Good Offices in Cyprus', United Nations Security Council Document S/2018/919, 15 October 2018.

AN INCREASINGLY UNCERTAIN STATUS QUO

Notwithstanding the assessment contained within the UN Secretary-General's October 2018 report that the prospects for a settlement remain alive, in the view of most external observers Cyprus is at an impasse. There appears to be little immediate hope of a resumption of negotiations. At one time, this would have been an unwelcome, but a nevertheless fairly familiar, situation. The history of the Cyprus Problem has been one of repeated efforts to reach an agreement between the two sides followed by long periods of estrangement or talks about talks. Such a hiatus would usually have been an opportunity for the sides and other relevant parties, including the UN, to reflect on the process. However, the old certainties that made a prolonged break in the talks possible are rapidly disappearing. There is a growing realisation that the status quo is increasingly untenable and that the window of opportunity for a settlement is now closing. Specifically, there are three main areas of concern.

THE ESTRANGEMENT OF THE COMMUNITIES

It has now been 55 years since the events of 1963 led to the initial separation of the two communities and four and a half decades since the island was divided following the Turkish invasion. Those who truly remember living in a truly bicomunal Cyprus are dwindling.²² Anyone with any real experience of living alongside members of the other community is now likely to be over seventy years old. Of course, the opening of the Green Line in 2003 has led to a far greater degree of contact between the communities. However, the effects of this have been far less pronounced than many might suppose. Although Turkish Cypriots regularly cross over the Green Line, usually to take advantage of the shopping opportunities, but some so for work and schooling, the number of Greek Cypriots travelling the other way is far more limited. Even many years after the opening the crossing point in Nicosia, a majority of Greek Cypriots have never crossed the Green Line or have done so only once.²³ Notably, the estrangement of the two communities is especially pronounced amongst the young. It is increasingly

²² For more on past experiences of living together see Eleni Lytras and Charis Psaltis, *Formerly Mixed Villages in Cyprus: Representations of the Past, Present and Future* (Nicosia: AHDR, 2011)

²³ For example, a 2010-2011 poll showed that 32.87% of Greek Cypriots had never crossed the line, and 25.05 had done so only once. Only 7.7% had done so more than 7 times. Charis Psaltis, 'Is Contact Reducing Prejudice in Cyprus?', Presentation provided to the author, October 2018.

common to hear young Greek Cypriots, in particular, calling into question the benefits of a federal settlement and suggest that perhaps the maintenance of the status quo, or even partition, would be a better option than reunification.²⁴ While this does not necessarily reflect the views of the Greek Cypriot community as a whole – a small majority of which is still willing to accept a federal settlement by choice or necessity²⁵ – this is nevertheless a worrying trend. The collapse of the UN-sponsored negotiations seems to have had a particularly negative effect on bicomunal engagement.²⁶ Overall, the current situation is best summarised by the UN Secretary-General in his report to the Security Council, in July 2018:

Despite the opening of the first crossing in 2003 and six others thereafter, as well as multiple efforts over the years to promote meaningful contact and strengthen intercommunal relations, sustained cooperation between the communities remains limited. Several generations have now lived and grown up apart.²⁷

THE FUTURE OF THE TURKISH CYPRIOT COMMUNITY

A second major concern relates to fears about the future of the Turkish Cypriot community. At present, it is estimated that the size of the Turkish Cypriot community is around 150,000 people.²⁸ However, there are important demographic trends that are likely to see this number drop in the years ahead. For the past couple of decades, there has been considerable discussion about the way in which young Turkish Cypriots, faced with limited contact with the outside world and a shortage of job opportunities, have been leaving the island to build a life elsewhere.²⁹ Indeed, it is fairly common to hear even senior officials express their

²⁴ This has been a trend that has been evident for the past decade. For example, a 2009 study produced by the UNDP showed that 14% of young Greek Cypriots favoured the status quo, with another 10% favouring partition. This compared with just 6% that favoured federation and 2% in favour of confederation. The most popular solution was a unitary state 24%. However, 42% stated that they did not know what the best options was. 'Cypriot Youth on the Cyprus Problem', 'Youth in Cyprus: Aspiration, Lifestyles and Empowerment' (Nicosia: University of Nicosia Press, 2009) As the report noted, on page 136, 'separation seems to be popular once the taboo terms 'partition' or 'division' are not used.' Anecdotally, the author has frequently come across such comments from Greek Cypriot students in the United Kingdom.

²⁵ Recent polling presented by Neophytos Loizides and Hasan Cakal at a conference at the University of Westminster, on 12 July 2018, showed that 77.5% of Greek Cypriots saw a unitary state as a satisfactory solution, with a further 8.9% viewing it a solution of necessity. In contrast, 21.9% saw a bizonal, bicomunal federation as a satisfactory solution, with a further 36.3% viewing it as a solution of necessity. For the Turkish Cypriots, 60.6% viewed a two-state settlement as a satisfactory settlement, with a further 26.4% seeing it as a solution of necessity. For Turkish Cypriots, a biozonal, bicomunal federation was accepted by 62.4%

²⁶ 'Difficult Year' for Bi-Communal Work, Sir Stelios Says, *Cyprus Mail*, 26 September 2018.

²⁷ 'United Nations Operation in Cyprus: Report of the Secretary-General', United Nations, Security Council, 6 July 2018, S/2018/676

²⁸ Mete Hatay, Population and Politics in north Cyprus: An overview of the ethno-demography of north Cyprus in the light of the 2011 census, PRIO Cyprus Centre Report, 2 (Nicosia: PRIO Cyprus Centre and Friedrich-Ebert-Stiftung, 2017), p.32.

²⁹ See 'Turkish Cypriots leave island as 'settlers' move in', *The Telegraph*, 7 September 2002.

frustration at the way in which their own children have felt the need to abandon the island to pursue careers abroad. Although there may be a tendency in some quarters to inflate the figures of those leaving for their own political ends, there is no doubt that there has been a 'brain drain'. This has been especially pronounced since Cyprus joined the EU. While many of those moving abroad may harbour hopes of being able to return to Cyprus one day, for as long as the north remains isolated there will be little incentive to return. The breakdown of the negotiation process has therefore exacerbated concerns about the viability of the Turkish Cypriot community in the longer term. Many viewed the process as the last chance to reach a deal. Looking ahead, there are genuine fears that the negative demographic trends will continue.³⁰

Allied to the concerns about the reduction in the size of the Turkish Cypriot population, another fear is the growing number of Turkish citizens in the north. As noted, since 1974, there has been a steady flow of Turkish immigrants. The exact figures of new arrivals in unclear and open to considerable debate. The most comprehensive study to date is a 2017 report by Mete Hatay. His calculations suggest that 60,000 'TRNC' citizens who were born in Turkey or born in Cyprus to Turkish parents. This is out of a total 'TRNC' citizen population of 215,000 (of which, again, 150,000 are Turkish Cypriots). However, in addition to these citizens, there are also around 155,000 other residents at any given time; made up of students, foreign workers, or tourists. Of this number, 105,000 are Turkish nationals. Then there are about 25,000-30,000 Turkish troops. Therefore, out a total population in the region of 400,000 on any given day, half are likely to be Turkish citizens. If one includes other foreign residents, then the Turkish Cypriots are a minority in the north.³¹ While the available evidence has suggested that in the past these immigrants tended to adapt well to Turkish Cypriot society, and were welcomed by the Turkish Cypriots, especially the first arrivals,³² over the past two decades there have been growing worries that they are not integrating in the way that they have done in the past.³³ That said, studies have shown that they do not appear to have become mobilised in the way that many may have expected given the threat to their position posed by a peace agreement.³⁴ Nevertheless, the presence of so many Turkish citizens on the island also raises questions about the long term identity of the Turkish Cypriot community.

³⁰ Ozay Mehmet, 'Last Tango in Cyprus', *Cyprus Mail*, 2 September 2018. For example, in the immediate aftermath of the collapse of the most recent UN sponsored talks, in 2017, one senior Turkish Cypriot official expressed his fears for the future of his community to the author.

³¹ Mete Hatay, *Population and Politics in north Cyprus*, p.42.

³² Jensehaugen 'Filling the Void': Turkish Settlement in North Cyprus, 1974-1980', *Settler Colonial Studies*, 2017.

³³ Mete Hatay, *Beyond Numbers: An Inquiry into the Political Integration of the Turkish 'Settlers' in Northern Cyprus*, PRIO Report 4/2005, 2005.

³⁴ Loizides, Neophytos, 'Contested migration and settler politics in Cyprus', *Political Geography*, Volume 30, Number 7, 2011.

TURKEY'S INFLUENCE OVER THE NORTH

Finally, there is the growing influence of Turkey over the Turkish Cypriot community. Of course, there has always been concern about the degree of influence that Turkey exerts over the Turkish Cypriots. This stretches back to the 1960s. Even in the very earliest days of the new Cypriot state, there were claims that the Turkish Cypriots sought Ankara's input on every decision. However, there is no doubt that the scope of Turkey's influence has grown massively over the years. This has been seen most obviously in the post-1974 period, when the Turkish Cypriots have relied on Turkey to provide not only for their physical security, in the form of a large military presence on the island, but also in terms of their economic well-being. Given the economic isolation of the Turkish Cypriots, Turkey has underwritten the economy of the north. In 2016, the grant from Turkey amounted to 12.8% of state budget revenues.³⁵ This has naturally given Turkey considerable political influence over the Turkish Cypriots in the past and gave rise to claims of the 'Turkification' of northern Cyprus.³⁶

However, since the advent of the AKP government in Turkey, in 2002, and especially in recent years as the Erdogan administration has cemented its power in mainland Turkey, that influence has risen dramatically. This has led to growing tensions between Turkey and the Turkish Cypriots.³⁷ Many Turkish Cypriots now speak of their real concern at the so-called 'AKP-isation' of their community. This is seen in various ways. As noted, Turkey will soon control water and energy supplies to northern Cyprus.³⁸ While such steps could be positive in the context of reunification, as it could ease the problems the island faces, without a settlement, this growing reliance on Turkey enhances Ankara's domination over the north. Likewise, Turkey is also extending its cultural and religious influence. For instance, many observers have noted the extensive programme of mosque building that is taking place, not least of all the opening of the large Hala Sultan mosque just outside northern Nicosia.³⁹ With the June 2018 elections in Turkey, which saw the constitutional changes come into force that made Turkey a presidential republic, Erdogan's power in Turkey, and Turkey's influence over the Turkish Cypriots, looks set to increase. Taken together, the factors are serve to cement the estrangement of the two communities. Any bonds of a shared Cypriot identity are now receding. In truth, it is hard to speak of a common Cypriot identity these days. As Turkey increases its influence, it seems that this will get even more difficult. The sense of a shared heritage will no longer exist.

³⁵ Prime Ministry, State Planning Organization, Follow Up and Coordination Department, Turkish Republic of Northern Cyprus, 'Economic and Social Indicators 2016', December 2017, Table 17, page 21.

³⁶ Ozay Mehmet, 'Last Tango in Cyprus', *Cyprus Mail*, 2 September 2018.

³⁷ Rebecca Bryant and Christalla Yakinthou, *Cypriot Perceptions of Turkey* (Istanbul: Tesev Publications, 2012).

³⁸ Elif Binici, 'Turkey's cooperation with Northern Cyprus to expand horizon in regional energy, politics', *Daily Sabah*, 16 October 2017.

³⁹ 'Erdogan flies into northern Cyprus to wary welcome', *The Guardian*, 8 July 2018.

THE CHALLENGES TO REUNIFICATION

As can be seen, Cyprus is now facing an unprecedented change in circumstances. The old certainties, which made a continuation of the status quo possible, are disappearing. The two communities are growing apart with fewer and fewer who can remember a period of coexistence. The Turkish Cypriot community is under threat as never before as Turkey extends its influence over the north and ever greater number of Turkish Cypriots are choosing to leave the island. For this reason, it is now becoming ever more apparent that urgent steps are needed to try to find ways to support the Turkish Cypriots community and ensure that it has a viable future on the island. While we can certainly point to a range of important initiatives to promote contacts between the two communities, more needs to be done. The problem is that any forms of official or semi-official interaction between Greek Cypriots and the Turkish Cypriots, and between the Turkish Cypriots and the wider international community, is inevitably viewed with suspicion by the Cypriot authorities, as well as by the wider Greek Cypriot community. Indeed, the question of recognition is the greatest single impediment to efforts to open up contacts between the communities and between the Turkish Cypriots and the wider international community – steps that will help to keep the door open to a settlement.

THE PROBLEM OF RECOGNITION

There are in fact several different forms of recognition in international politics.⁴⁰ Most usually, however, discussion about recognition tends to focus on one of two main types of recognition: the recognition of governments and the recognition of states. The first of these, the recognition of governments, is in fact becoming increasingly rare. States have moved away from the practice as it is felt to be unnecessarily complex. For example, Britain ceased recognising governments in the 1980s. That said, the practice of government recognition is not wholly irrelevant to Cyprus. For example, Turkey's refusal to recognise the Republic of Cyprus, which has also raised significant questions, should in fact have been framed as a refusal to recognise the government of the Republic of Cyprus, rather than the Republic itself. Instead, the recognition of states has now emerged as the predominant form of recognition in current international politics. This is the form of recognition that most relevant in the case of Cyprus as it specifically addresses questions of secession and unilateral declarations of independence.⁴¹

The recognition of states first became important at the end of the eighteenth century, when the United States of America declared independence from Great Britain.⁴² At that time, it was agreed that a territory should only be recognised as independent if the colonial power permitted the state to gain independence. This view changed in the nineteenth century as it became accepted that territories that had managed to prove their statehood by liberating themselves from a colonial power should be recognised as states, even if the former colonial power objected. This new approach opened the way for the creation of

⁴⁰ For more on recognition see, amongst others, Hersch Lauterpacht, *Recognition in International Law* (Cambridge: Cambridge University Press, 1947); William V. O'Brien (editor), *The New Nations in International Law and Diplomacy* (London: Stevens and Sons, 1965); Thomas D. Grant, *The Recognition of States: Law and Practice in Debate and Evolution* (Westport: Praeger, 1999); Visoka, Gezim, John Doyle and Edward Newman (editors), *The Routledge Handbook of State Recognition* (London: Routledge, 2019).

⁴¹ The word secession is derived from the Latin word 'withdraw'. It is usually understood to refer to the act of territories to try to leave a state and form their own separate, independent state. This can be done either with consent, in which case it is usually accepted by the international community, or without permission, which is deemed to be a unilateral act of secession. For more on secession see Marcelo G. Kohen (editor), *Secession: International Law Perspectives* (Cambridge: Cambridge University Press, 2006); Aleksandar Pavković and Peter Radan, *The Ashgate Companion to Secession* (London: Routledge, 2011); Ryan D. Griffiths, *Age of Secession: The International and Domestic Determinants of State Birth* (Cambridge: Cambridge University Press, 2016).

⁴² For more on the history of recognition see Mikulas Fabry, *Recognizing States: International Society and the Establishment of New States Since 1776* (Oxford: Oxford University Press, 2010); and Bridget Coggins, *Power Politics and State Formation in the Twentieth Century: The Dynamics of Recognition* (Cambridge: Cambridge University Press, 2014).

states in Latin America, as well as the emergence of the states in South East Europe, such as Greece, that had managed to free themselves from Ottoman imperial rule. The end of the Second World War ushered in the modern era of recognition in international relations. Although the principle of self-determination became accepted as a basic right of people, its application was severely limited. Except in cases of colonial rule, self-determination came to be understood as a right to internal autonomy, rather than full independence. At the same time, the territorial integrity of states was also enshrined in the Charter of the United Nations. Together, this created a very strong prohibition of unilateral acts of secession. Territories and peoples who sought to break away from existing states without the permission of the 'parent state' now found the way all but closed. It was this prohibition on unilateral secession that explained the strong and very quick rejection of the Turkish Cypriot unilateral declaration of independence in 1983.

In the years since then, the international view on the recognition of acts of secession has changed very little. The wars in Yugoslavia, and the collapse of the Soviet Union, in many ways reinforced the objection to unilateral secession. However, this did not stop a number of territories from using the instability of the post-Cold War era to make a bid for independence. The most notable of these have been South Ossetia and Abkhazia, which have sought to break away from Georgia; Transnistria's efforts to gain independence from Moldova; and Nagorno-Karabakh's efforts to secede from Azerbaijan. More recently, the fighting in Ukraine has seen several territories there attempt to secede. The most notable case of unilateral secession in the past few decades has been Kosovo, which unilaterally declared independence from Serbia in 2008. While it had the support of the United States, Britain, and France, its independence has not been recognised by Russia and China. This means that although it has now been recognised by over 110 countries, it has therefore been unable to join the UN.

PRINCIPLES AND PROCESSES OF RECOGNITION

From having been a rare occurrence in international affairs, the question of secession and recognition has therefore grown increasingly significant. However, it is an area that is still shrouded in mystery for many observers. To this end, it is worth making a few important observations about the concept and practice of recognition. First of all, recognition is a sovereign prerogative of states and is a political process. Put simply, any state can choose whether it wishes to recognise another state. It does not have to conform to any legal principles when doing so. While states may choose to follow legal norms when making their decision, there is no requirement to do so. That said, as noted above, states have a deep aversion to unilateral acts of secession. They will rarely, if ever, recognise states that have emerged in such a manner. Tied to this, it is worth noting that only states can recognise other states. International organisations and non-governmental bodies cannot recognise states. There is no such thing as a 'UN recognised state'. Having said this, international law also recognises the principle of collective non-recognition. This allows states to decide

jointly not recognise a territory as a state. This is the basis for UN Security Council Resolution 541, which called on states not to recognise the 'TRNC'. However, while the UN Security Council, or any other state or group of states, may choose to take punitive actions against a state that recognises a particular territory, they cannot annul the decision. Again, recognition remains a sovereign right of states.

There is, however, one absolutely vital point about recognition that cannot be emphasised too strongly. Recognition is fundamentally and wholly about intent. A state cannot recognise a territory unless it clearly wishes to do so. There is no such thing as accidental recognition. With the exception of a very small number of actions – such as the decision to open an embassy in the territory, which necessarily entails recognition – states can in fact interact to a very high degree with countries that they have not recognised and still be able to plausibly claim that they have maintained their policy of non-recognition.⁴³ In the past, this has even seen states formalise certain types of treaties with states that they do not recognise. Likewise, it is fairly common for officials to be able to meet with one another, either in a bilateral or in a multilateral context, without any suggestion that recognition has occurred.

POLICIES OF COUNTER-RECOGNITION

Given the strong opposition to secession, and that recognition cannot be accidental, one may ask why countries facing unilateral acts of secession go to such lengths to fight to prevent recognition. The short answer is that they cannot afford to be complacent. As the Sir Hersch Lauterpacht, one of the most eminent legal scholars of the twentieth century, noted, a state facing an act of secession will often take many years, if not decades, to formally acknowledge that the territory is irretrievably lost. In the meantime, it may start to signal that it has effectively given up its claim to the territory in question. These signals will in turn be read and interpreted by other states as a cue for their own interactions with the secessionist entity as a new state.⁴⁴ In other words, states facing an act of secession need to continually oppose the secession or else run the risk that their lack of action will be read to mean that they have accepted it. As a result, parent states have to make a concerted effort to stake an ongoing claim to the territory in question and prevent it from gaining wider international acceptance.

Any serious counter-recognition strategy will usually be built around four key elements.⁴⁵ First of all, the parent state needs to stake an ongoing claim to the territory in question. This is the foundation of any good counter-secession strategy. This means that the declaration

⁴³ James Ker-Lindsay, 'Engagement without Recognition: The Limits of Diplomatic Interaction with Contested States', *International Affairs*, Volume 91, Number 2, 2015, pp. 267-285.

⁴⁴ Lauterpacht, Hersch, *Recognition in International Law* (Cambridge: Cambridge University Press, 1947).

⁴⁵ For a full analysis of counter-secession strategies see James Ker-Lindsay, *The Foreign Policy of Counter Secession: Preventing the Recognition of Contested States* (Oxford: Oxford University Press, 2012).

of independence and the claim to statehood must be openly challenged. It also means rejecting all institutions of the breakaway territory and asserting the ongoing legality of the parent state's own bodies and institutions. Secondly, there needs to be a campaign to prevent formal recognition. This is where traditional diplomacy plays an important role. The parent state must engage in continual lobbying efforts to reassert its claim to sovereignty and prevent countries from accepting the territory in question, either formally or tacitly, such as by trying to limit international contacts with officials of the breakaway territory. Thirdly, steps need to be taken to prevent the legitimisation of the territory, sometimes known as normalisation or Taiwanisation,⁴⁶ As well as preventing formal recognition or acceptance by states, it is important to take steps to prevent the breakaway territory from joining international organisations and associations, preventing it from engaging in economic activity or participating in sporting and cultural activities. Fourthly, and finally, states will often explore the ways in which they can use international law to support their case, either by challenging the declaration of independence, as Serbia did with Kosovo before the International Court of Justice, or through indirect means that challenge an aspect of the territory's claim to independence or sovereignty.

All four of these elements have been seen very clearly in the case of Cyprus. The Cypriot Government repeatedly emphasises that it does not recognise the 'so-called' institutions of what it refers to as the pseudo-state. Likewise, it maintains nominal institutions of governance, including municipal authorities. Secondly, it has maintained a strong diplomatic campaign to prevent the acceptance of the 'TRNC' by the international community. Apart from the very short-lived recognition by Bangladesh, to date only Turkey has formally recognised the TRNC. In large part, this has been aided by the two key UN Security resolutions highlighted earlier: Resolution 541 (1983) and Resolution 550 (1984). These have made any formal moves by other countries to recognise the Turkish Cypriot 'state' extremely difficult. While there have been occasional rumblings that another state may recognise the 'TRNC', this has never looked particularly likely. In fact, Cypriots diplomats will privately admit that they do not believe that the widespread recognition of northern Cyprus is likely any longer. Instead, the Cypriot Government has become far more focused on what it sees as the danger of the creeping acceptance of the Turkish Cypriot 'state'. This is where the bulk of the Cypriot government's efforts are now focused. These have been incredibly successful, largely because the efforts are well co-ordinated, unrelenting and fierce. As one foreign diplomat once put it to the author, it is as if the Cypriot Government maintains an entire department dedicated to spotting anything that 'upgrades' the 'TRNC'. From time to time, it issues warnings to foreign diplomats if they are seen to be too

⁴⁶ Berg, Eiki and Raul Toomla, 'Forms of Normalisation in the Quest for De Facto Statehood', *The International Spectator*, Volume 44, Number 4, 2009.

engaged with Turkish Cypriot officials.⁴⁷ As for legal cases, the Cypriot Government has not taken direct action against Turkey, preferring instead to leave it to private initiatives; such as the Loizidou case before the European Court of Human Rights, which affirmed that northern Cyprus was a subordinate administration of Turkey.

THE EFFECTS AND DANGERS OF ISOLATION

Given that states need to be seen to be contesting an act of secession, the reasons why the Cypriot government has pursued such a strong and unyielding approach is understandable. However, it is also widely accepted that such campaigns can carry a very serious cost inasmuch as they lead to the isolation of the breakaway territory. This in turn creates several problems. For a start, it undermines trust between the two parties and makes the breakaway territory even less inclined to want to find a settlement. At the same time, it often forces the breakaway territory to build even closer ties with a patron state; understood to mean an external, UN member that provides a degree of economic, political and military support.⁴⁸ Both of these factors have been seen in the case of Cyprus.

The Cypriot Government's efforts to prevent or limit engagement with the Turkish Cypriots has bred resentment. As they see it, the policies are not about trying to keep the community from gaining international recognition. Instead, the steps are seen as acts of intimidation and punishment. In the view of many Turkish Cypriots, the fact that the Greek Cypriots would act in this way is evidence that they are unwilling to see them as future partners in a reunified Cyprus. Of course, the Greek Cypriots see things very differently. Again, they view any efforts by the Turkish Cypriots to engage with the international community, and thus end their isolation, as a means to strengthen their position and make a settlement less necessary or desirable. In fairness, both views are reasonable, but also flawed. Given the dangers that isolation brings, the Cyprus Government needs to accept that a degree of interaction is not only necessary, but desirable as it helps to build a climate of trust. The Turkish Cypriot community also needs to understand the Greek Cypriot fears that any efforts to ease the isolation of their community is seen as a step towards eventual acceptance. This is not just seen from an internal perspective, it is also important from a wider, international view. They in turn need to establish confidence and trust by not being seen to use such contacts to further recognition or legitimisation of the 'TRNC'.

Likewise, the efforts to isolate the Turkish Cypriots have made them ever more reliant on Turkey, their patron state. Turkey now provides northern Cyprus with its vital links to the outside world. It provides the security for the Turkish Cypriot community through the presence of a large military force on the island. In almost every way, the Turkish Cypriots are

⁴⁷ 'Ambassadors warned over visits to the north', *The Cyprus Mail*, 28 June 2014.

⁴⁸ Ker-Lindsay, James and Eiki Berg (2018), 'Introduction: A Conceptual Framework for Interaction with de facto States', *Ethnopolitics*, Volume 17, Number 5, 2018

reliant on Turkey. This has a number of worrying consequences. As well as further encouraging young Turkish Cypriots to leave the island, who are then replaced by settlers from the Turkish mainland, this gives Turkey an ever greater say in the settlement efforts. To this extent, by pursuing a policy that attempt to keep the Turkish Cypriots isolated, the Greek Cypriot leadership is not creating the conditions for the Turkish Cypriots to capitulate and accept reunification. Instead, they are merely making them even more reliant on Turkey.

In addition to the two points raised above about the damage done by a policy of isolation, there is a further that needs to be considered. Overbearing efforts to prevent recognition, or any form of engagement, can also negatively affect the way in which the Cypriot state is viewed by the international community. In recent years, there has been a growing sympathy for the Turkish Cypriots. This is in part caused by the efforts of the Cypriot Government's to limit engagement on the island and their apparent intolerance to any forms of interaction between the Turkish Cypriots and the outside world. Indeed, in the eyes of many, the forceful way in which Cypriot officials behave is often perceived as bullying. Such tactics are increasingly seen as unacceptable. Rather than deter external governments from engagement, it can actually make them all the more determined to do so. It can also increase sympathy for the Turkish Cypriots, who are seen as 'victims' of 'unreasonable' behaviour. This is further strengthened by the current perception that the Turkish Cypriot leadership is committed to a settlement. When the Turkish Cypriots leadership was hard-line, as was the case under Denktash, the Turkish Cypriots were isolated. However, when they showed a greater willingness to enter into dialogue, or even support an agreement, then they have found considerable rewards. The evident willingness of Mustafa Akinci to engage in settlement talks after 2015, following the obstructionist policies of the Eroglu era, saw even more engagement from outside.

'ENGAGEMENT WITHOUT RECOGNITION'

The question now facing Cyprus is how to confront the three main challenges to reunification – a growing estrangement between the communities, a diminished Turkish Cypriot community, and growing Turkish influence over the North – and yet do it in a way that acknowledges the wider concerns regarding unilateral secession and recognition and avoids giving the impression that the act of secession is slowly being accepted by the Cypriot Government. Although this would seem to be an unresolvable conundrum, there is a solution.

As highlighted, there has been an increase in the number of secessionist disputes around the world in recent decades. Of course, the circumstances surrounding these cases are all very different. However, it is increasingly clear that many of the traditional ways of approaching such disputes do not work. Efforts to pursue an unrelenting battle against recognition does not bring about reunification. On the contrary, as in Cyprus, such efforts only lead to isolation, which in turn leads to alienation, mistrust, resentment and, very

often encourage a greater reliance on an outside patron state that may have less interest in reaching a settlement. There is also an important humanitarian dimension to the issue.⁴⁹ As Tom de Waal, neatly summed it up in the context of the disputes in the Caucasus:

This firm international stance on sovereignty does not, however, resolve a host of day-to-day issues with regard to these territories. They are home to hundreds of thousands of people who do not deserve to lose their fundamental rights just because the status of the territory they live in is undetermined. These people go to work and school and want to travel abroad, just as the residents of recognized states. Moreover, these people have chosen institutions and leaders that are now long established but have no formal international status. Choosing the right kind of interaction with these *de facto* officials is difficult for international actors but essential to resolve the protracted conflicts.⁵⁰

For this reason, scholars and practitioners have increasingly recognised the value of pursuing strategies that allow for a degree of interaction with a *de facto* state, all the while maintaining a very strict policy of not accepting the claim to statehood by the entity in question. This policy of what is now known as 'engagement without recognition' is now attracting growing interest.

The term 'engagement without recognition' first emerged in the Caucasus in the early 2000s. Faced with the growing estrangement of these territories from their parent states, and their growing reliance on Russia, which had little interest in resolving the conflicts, it became obvious that the traditional policies of keeping these territories isolated was counter-productive. Leading the way, the European Union therefore began to explore a range of practical measures that could be implemented that would provide a mechanism for keeping the prospects of reconciliation open, and yet reduce the influence of a patron state. Since then, the idea has generated a lot of interest in the scholarly and policy communities.⁵¹ It has come to be seen as providing a mechanism for wide-ranging interaction between parent states and breakaway territories, as well as between breakaway territories and the wider international community. Crucially, the concept is framed in terms of respecting the fact that such engagement is occurring with territories that are not recognised by the parent state or the wider international community as sovereign

⁴⁹ It is also important to note that breakaway territories are also guilty of failing to respect international human rights standards. For instance, Turkey and by extension the Turkish Cypriots have been found responsible for depriving Greek Cypriots of their properties in the north.

⁵⁰ Thomas de Waal, 'Enhancing the EU's Engagement with Separatist Territories', *Carnegie Europe*, 20 January 2017.

⁵¹ Cooley, A., & Mitchell, L. A., 'Engagement without recognition: A new strategy toward Abkhazia and Eurasia's unrecognized states', *The Washington Quarterly*, Volume 33, Number 4, 2010. See also Eiki Berg and James Ker-Lindsay (editors), 'Engagement without Recognition: The International Politics of Interaction with *de Facto* States', (London: Routledge, 2018).

independent states. Instead, the policy is about recognising the need for interaction, either because isolation is undermining the hopes for a settlement or because it is forcing the territory in question to move closer to a patron state. As already noted, both of these factors are clearly present in Cyprus.

In practical terms, the concept of engagement without recognition does not provide a formal or defined framework for interaction with unrecognised territories. Instead, the concept is better thought of as a new and very flexible approach to conflict management. It is built upon an understanding that processes of conflict resolution sometimes require greater interaction between parties, rather than confrontation and isolation, but that this can be problematic in secessionist disputes because of longstanding legal and political positions. In real terms, such interaction can occur in a wide variety of ways, and across a range of levels – from the formal institutions of the parent state and the breakaway territory through to interactions between civil society actors. Overall, it is about deescalating tensions and building trust and confidence between the parties and providing mechanisms for external actors to be able to better facilitate the process of conflict management and conflict resolution without prejudicing the underlying positions of the parent state and the international community. To this end, it functions by providing openings for a variety of initiatives that build valuable links between the disputants. This is crucial not only in terms of building trust between parties, but also by providing a mechanism to model peaceful relations between the parties; either in the context of building trust or as an example of how a post-settlement relationship could function successfully. To this extent, even when high level talks are not functioning, or perhaps especially when such talks are at an impasse, these examples of interaction and engagement can produce a meaningful model of cohabitation and cooperation that can serve to underline the value of a final settlement. The underlying philosophy, however, remains that interaction is necessarily better than isolation, but that the claim to sovereignty by the breakaway territory must remain unrecognised. Simply put, for the concept of ‘engagement without recognition’ to produce results, there needs to be an underlying ‘culture of engagement’.

BUILDING A CULTURE OF ENGAGEMENT IN CYPRUS

Changes on the island and in the wider region mean that urgent steps are needed to encourage greater interaction between the communities. These need to be focused on four key strategic objectives: building ties and trust; creating a viable future for the Turkish Cypriot community; reducing Turkey's influence in the north; and finding joint solutions to common problems.

The single most important element of any engagement process must be to connect the people of the island. While there is far greater interaction between Greek and Turkish Cypriots than once was the case, more needs to be done. In substantive terms, this is one of the easier areas to manage. A great many activities that can be used to build new relationships can be carried out civil society organisations. In fact, the potential for such cooperation is significant. There is considerable room for enhanced cooperation amongst groups focusing on gender, disability, age, politics, interests, as well as issues areas. As well as looking to the future and encouraging contacts between young people on both sides of the Line, such efforts could also focus on tackling the past. For instance, questions of truth and reconciliation, as well as the issue of missing persons, remain a sore point for both communities. By encouraging such projects at the unofficial level, concerns regarding recognition can be reduced, if not eliminated. However, such interaction is still not without its problems. Where there is any suggestion of official interaction, it is likely to prove difficult. Even if there is not a formal reason that prevents interaction between Greek and Turkish Cypriots, there is still a widespread culture of suspicion, if not hostility, that exists when it comes to such interaction. Many continue to regard contacts with the other community with a degree of suspicion, if not outright hostility.

The second great challenge concerns the future presence of a viable Turkish Cypriot community on the island. Given the growing brain drain, steps need to be taken to try to encourage young Turkish Cypriots to remain on the island. One of the most important factors forcing young Turkish Cypriots to depart is the lack of realistic and meaningful job prospects. Given the limited economic opportunities available, many Turkish Cypriots see no option but to pursue jobs in the administration. However, these are hard to obtain, and often require connections. As they hold an EU passport, many simply feel that it is easier to move away and pursue opportunities elsewhere. To this extent, building a viable economy in northern Cyprus would be a vital step in this regard. Steps to improve trade across the

Line would be an important step in this direction. So too would steps to encourage business between the two communities and providing incentives and opportunities for entrepreneurs who wish to operate across the division. The problem is that this again raises Greek Cypriot concerns that a stronger Turkish Cypriot economy will undermine settlement efforts. This is true, but only in part. However, such concerns must now be balanced against the dangers posed to reunification by the current trajectory. The economic asymmetry between the sides, across every sector of the economy, may also have a harmful effect on settlement prospects, not least of all because it feeds the view that the Greek Cypriot community will necessarily have to bankroll any settlement and subsidise the Turkish Cypriot community. But the problems of isolation are not just limited to the economy. They are felt in other ways. For example, the effective bar on participating in sporting competition, or in a wider range of other cultural pursuits, also has a profound effect, especially for younger members of the Turkish Cypriot community.

The third great challenge is to counter the growing influence of Turkey in northern Cyprus. This cannot be done without giving the Turkish Cypriots a viable alternative. Ideally, this would be based on strengthening their links to the Greek Cypriots as future partners within a federal state and with the European Union as a fully integrated territory of the Union. Again, some of this can be done through civil society activities. Also, the EU has undertaken initiatives to try to prepare the Turkish Cypriots for full membership. However, there is a lot more that can still be done. Understandably, this is the most difficult and sensitive area to manage. The overtly governmental aspects of such cooperation necessarily make it more difficult to achieve. However, it is nevertheless extremely important. It also has the potential to serve very valuable practical purposes. Anyone familiar with Cyprus is aware of how questions of recognition have hampered cooperation between the communities on a range of areas, including some areas where there is a very clear case for the sides to work with one another. This has been seen in terms of emergency services, where ambulances have been refused permission to cross the line and assistance from fire services has been rejected.

In addition to the three challenges identified above, there is a fourth element that has to be considered. This is the need to address future challenges to the island as a whole. There are a range of issues confronting Cyprus that can only be successfully managed on an island-wide basis. Obvious examples include environmental issues, such as mitigating the effects of climate change and water management. More recently, the question of migration has become a growing concern. In many instances, these issues can only be addressed by joint action. However, this too requires official cooperation. However, failing to act because of the ongoing concerns over recognition means that considerable, if not irreparable, damage could be done to the island.

BUILDING A CULTURE OF ENGAGEMENT

Addressing all these areas requires a fundamental change in the way in which the communities interact. Rather than focus on why things cannot be done because they could suggest recognition, or present a threat to claims of sovereignty, the emphasis needs to be on looking at how things can be done to counter the threats and challenges identified earlier and facilitate an eventual settlement. There are a range of steps that can be taken to build a culture of engagement on the island.

Encourage a positive view of communal engagement

First and foremost, the way in which communal engagement is understood within the communities needs to change. Within the Greek Cypriot community, in particular, it is important to convey the message that the promotion of social, cultural and even economic contacts between the two communities is not about legitimising the Turkish Cypriot 'state'. Nor is it about opening the way for its recognition. Instead, the aim of such efforts is squarely focused on ensuring the longer-term viability of the Turkish Cypriot community and reducing Turkey's influence on the island. It is about keeping the doors open to a settlement. At the same time, more needs to be done to emphasise that the status quo is no longer stable and highlight the dangers that face the Turkish Cypriot community. Ordinary citizens need to be aware of what the changing demographic and political environment in the north could mean for the island as a whole in the longer term. As the Security Council has noted, political leaders need to make more effort to highlight the benefits of a settlement and actively encourage the two communities to engage with one another.⁵²

Countering those opposed to engagement

As well as developing a positive culture of engagement, authorities need to do more to defend groups and individuals pursuing engagement from targeted harassment by those opposed to such interaction, including elements of the media. Over the years, the vilification of those who try to reach out across the dividing line has been a regular feature of political life on the island. Sadly, it continues to this day. In his October 2018 report to the Security Council, the UN Secretary General highlighted the case of the extremely negative reaction from some Greek Cypriot political figures to musician from the state orchestra who were due to play in the north. He also noted the strong backlash against a glossary produced to assist journalists covering the Cyprus Problem write about the issue in a manner that is sensitive to views of the other community.⁵³ Of course, there needs to be room for debate within both communities. This is not about trying to censor the media. However, the culture of intimidation

⁵² UN Security Council Resolution 2453, 30 January 2019.

⁵³ 'Report of the Secretary General on Good Offices in Cyprus', United Nations Security Council Document S/2018/919, 15 October 2018. 'State Orchestra members called to face the Music over Concert in the north', *Cyprus mail*, 13 September 2018.

that has allowed elements within the communities to condemn people who are trying to build trust and engagement needs to be challenged. Again, more needs to be done by the political leaders on both sides to defend the value of contacts between the two communities. The media plays a particularly important role in this regard. To this end, more could be done to encourage greater cooperation between the media in the two communities. This could include efforts to encourage joint productions. It could even include awarding grants to media outlets that are willing to offer opportunities to journalists from the other community.

Setting an example for intercommunal contacts

Far too often, those who have tried to promote engagement have been treated with suspicion, if not hostility. This needs to change. Members of the government as well as senior officials need to be seen and heard speaking out about the dangers of permanent division and advocating greater cross-community contacts. Political leaders need to take the lead on this. While party representatives have been meeting for many years under the auspices of the Slovak Embassy,⁵⁴ more needs to be done to encourage high-profile engagement between policy makers and opinion formers from the two communities. The meetings between Averoff Neophytou, the leader of the largest Greek Cypriot party, DISY (Democratic Rally), and Kudret Ozersay, the leader of the People's Party, are a good example of direct contacts between political leaders.⁵⁵ Similar such contacts between politicians across the political spectrum need to take place on a regular basis. Likewise, other leading figures from other areas of political, economic, cultural and sporting life in Cyprus should be encouraged to make contacts with people from the other community and, ideally, speak out in favour of greater engagement. The March 2019 match between the Greek Cypriot *Nea Salamina Famagusta* and the Turkish Cypriot side *Mağusa Türk Gücü*, the first such match in 14 years, was a valuable opportunity to highlight the value of having Greek and Turkish Cypriots meet together to play sport. The fact that it was attended by President Anastasiades, as well as by a number of diplomats and UN officials on the island, gave it a welcome seal of official endorsement.⁵⁶

Provide official and financial support for engagement activities

While advocating greater interaction between the two communities is undoubtedly an important part of an effort to change the wider culture of engagement, this needs to be underpinned by tangible actions. One obvious way to do this is to establish a fund to support such activities. This could either be run separately by the two communities or some mechanism

⁵⁴ These meetings have been taking place for over thirty years. In 2018, the Embassy facilitated eight meetings between party representatives.

⁵⁵ 'Ozersay reveals unofficial contacts with Disy's Neophytou,' *Cyprus Mail*, 21 October 2018.

⁵⁶ Sadly, the initiative was marred by a decision of the Turkish Cypriot leader to boycott the match over a change of venue. 'Anastasiades uses bicomunal match to promote shared vision,' *The Cyprus Mail*, 19 March 2019.

could be found to operate it jointly, for example under the auspices of the UN or European Union. There are a range of other possibilities that could be explored. For example, is there room to expand the Turkish language programming on state television or the provision of Turkish language at the University. In his report, the Secretary-General welcomed reports that the Turkish Cypriots had announced that they intended to bring more Greek language teachers into the school system.⁵⁷ Indeed, education provides a very important sphere where much more could be done to encourage bicommunal contact. One valuable initiative is the 'Imagine' project, which offers opportunities for Greek and Turkish schoolchildren to meet.⁵⁸ Likewise, more could be done by civil society, especially if the political climate towards engagement changed. For example, Sir Stelios Hadji-loannou, the noted businessman and philanthropist, has established an award scheme that offers 50 cash prizes every year to projects and initiatives that promote contacts between the communities.⁵⁹ Similar awards schemes could be introduced by other philanthropic bodies. There could even be an official award scheme created, jointly or separately, by the two sides, or even by outside bodies, to recognise outstanding contributions to bicommunal contacts and reconciliation.

Open more crossing points

The greatest moment of transformation in Cyprus since 1974 was the opening of the Green Line, in April 2003. At present, there are nine crossing points.⁶⁰ However, efforts to open the latest two – in Dheryneia, near Famagusta, and in Lefka, in the west of the island – were delayed for many years and only opened in November 2018.⁶¹ Further points should be opened, such as a crossing at Aglandja-Piroi. However, opening points serves relatively little value if people do not use them. More also needs to be done in this regard. According to the most recent figures made available by the Cypriot government, in 2017 there were 646,569 crossings by Greek Cypriots, up from 613,111 the previous year (which was up from 534,879 in 2015). Meanwhile, 1,140,682 crossings were made by Turkish Cypriots. This was up from 1,138,670 a year earlier.⁶² As can be seen, the flow of movement has tended to be focused

⁵⁷ 'Report of the Secretary General on Good Offices in Cyprus', United Nations Security Council Document S/2018/919, 15 October 2018, para. 17.

⁵⁸ 'Launch of Educational Programme 'Imagine'', UNFICYP, 28 November 2017. <https://unficyup.unmissions.org/launch-educational-programme-'imagine'>

⁵⁹ 'Difficult Year' for Bi-Communal Work, Sir Stelios Says, *The Cyprus Mail*, 26 September 2018.

⁶⁰ Agios Dhometios, Astromeritis, Dheryneia, Ledra Palace (Nicosia), Ledra Street (nicosia), Lefka, Limnitis, Pyla, Strovilia.

⁶¹ 'New crossings open at Dherynia and Lefka-Apliki', *The Cyprus Mail*, 12 November 2018.

⁶² European Commission, 'Fourteenth report on the implementation of Council Regulation (EC) No 866/2004 of 29 April 2004 and the situation resulting from its application covering the period 1 January until 31 December 2016', COM(2018) 488 Final, Brussels, 22 June 2018. The report also produces figures produced by the Turkish Cypriots. These differ considerably, showing 1,066, 284 Greek Cypriots crossings (up from 980,724 the year before) and 1,796,353 crossings by Turkish Cypriots (up from 1,762,492).

more on Turkish Cypriots crossing south than Greek Cypriots going in the other direction. However, as the figures show, while Turkish Cypriot crossings remain relatively static over the past two years, there was a 20 per cent increase in Greek Cypriot crossings. More recent figures have suggested that the number of crossings from south to north increased even further in 2018, largely due to the economic problems in Turkey and the weakness of the Turkish Lira, which made shopping even more attractive.⁶³

More needs to be done to encourage people from both communities to cross the dividing line. Here again sensitivities over being seen to recognise 'the north' has been a factor for many Greek Cypriots. To this end, the May 2015 decision of the Turkish Cypriot authorities to end the requirement for Greek Cypriots to apply for a 'visa' was a positive development and does appear to have encouraged more crossings by Greek Cypriots.⁶⁴ (They now have to show an identity card, which is still rejected by many Greek Cypriots.) While undoubtedly positive, yet more needs to be done to make people more willing to move around the island freely. Of course, for many Greek Cypriots it remains a point of principle that they will not cross while any restrictions remain in force. While understandable, once again there is an argument to be made by political leaders that this only serves to perpetuate the division of the island.

Implement previously agreed initiatives

Far too often in conflict situations, the two parties will agree measures aimed at building trust or facilitating contacts, only to see those measures to fall by the wayside later on. This can be due to a variety of reasons. In some cases, there may be legitimate technical problems. Often, though, it can come down to a lack of political will. Whatever the reason, it is important to ensure that agreed steps are subsequently put into action. The crossing points are not the only area where more needs to be done to ensure that previously agreed initiatives are completed. There are several such initiatives in the Cyprus case. While efforts to link mobile telephony finally came to fruition in 2019,⁶⁵ there are other areas where more can be done. For instance, another prominent example is the effort to reunify Cypriot football, which would see Turkish Cypriot teams able to compete internationally. Although an agreement to this end was greeted with significant international fanfare in 2013,⁶⁶ the idea has since fallen by the wayside for reasons that are not entirely clear.⁶⁷ It needs to be resurrected. A final agreement would not

⁶³ 'Our View: High Number of Crossings is a Boost for Co-Existence', *The Cyprus Mail*, 23 August 2018.

⁶⁴ European Commission, 'Thirteenth report on the implementation of Council Regulation (EC) No 866/2004 of 29 April 2004 and the situation resulting from its application covering the period 1 January until 31 December 2016', COM(2017) 371 Final, Brussels, 7 July 2017, p.3.

⁶⁵ 'Mobile phone links established between two sides', *Cyprus Mail*, 11 July 2016.

⁶⁶ 'FIFA hail 'landmark' agreement for football in Cyprus', *Reuters*, 5 November 2013.

⁶⁷ Constantinos Adamides and Sertac Sonen, 'Soccer Diplomacy: A non-political catalyst for the settlement of the Cyprus Problem or just another missed opportunity?', Conference Paper, International Studies Association, Atlanta, 2016.

only send a very powerful message about reconciliation between the communities, it would play a part in easing the sense of isolation of the Turkish Cypriots and perhaps even provide a framework for similar agreements covering other sports.

Encourage more trade and commerce

As noted, providing opportunities for greater economic interaction between the two communities would be a vital step towards maintaining the possibility of a settlement. In recent years, the levels of commerce and trade between the two sides has increased. According to Greek Cypriot figures, in 2016 the value of Turkish Cypriot goods crossing the line was €4,374,668, a 21 per cent increase on the previous year. The Turkish Cypriot figures for the same period show the value of goods crossing from the north was €5,697,695. This was up from €5,017,714 the year before; a 13.55% increase.⁶⁸ (This was on top of an increase of 27.5 per cent from the previous year.⁶⁹) (It is worth noting that the range of goods traded is based mainly on plastic products, fresh fish, building materials, and, increasingly, potatoes.) Meanwhile, Greek Cypriot goods crossing north amounted to €1,343,524. This was a 0.8% decrease on the previous year.

Given these figures, and the relatively limited range of goods being traded, it is widely accepted that there are many initiatives that can be done to further expand the degree of economic interaction across the Green Line. Here the experiences elsewhere can be instructive. There have been some excellent studies on the way in which trade has fostered greater contacts between communities in the Caucasus.⁷⁰ However, efforts to encourage greater economic interaction also need to recognise that there are areas of contention. For a variety of reasons, many goods are cheaper in the north. In some cases, the amount that can be brought across is limited. For examples, people are restricted to bringing across just 40 cigarettes from the North. In other areas, there are no limits for personal use. This can encourage people to take advantage of the situation, and for companies to even break the law. For instance, in April 2018, fuel in the North was €0.75-0.80 per litre as compared to €1.39-1.43 in the areas under the control of the Cypriot Government.⁷¹ While this may benefit the Turkish Cypriot economy, it is a cause for significant concern by the Cypriot Government and Greek Cypriot companies. Steps should therefore be taken that, while encouraging greater economic interaction, will not cause damage in other ways.

⁶⁸ European Commission, 'Fourteenth report on the implementation of Council Regulation (EC) No 866/2004 of 29 April 2004 and the situation resulting from its application covering the period 1 January until 31 December 2016', COM(2018) 488 Final, Brussels, 22 June 2018.

⁶⁹ European Commission, 'Thirteenth report on the implementation of Council Regulation (EC) No 866/2004 of 29 April 2004 and the situation resulting from its application covering the period 1 January until 31 December 2016', COM(2017) 371 Final, Brussels, 7 July 2017.

⁷⁰ Natalia Mirimanova, 'Opening the 'Ingur/I Gate' for Legal Business: Views from Georgian and Abkhaz Private Companies', *International Alert*, March 2018.

⁷¹ 'Green Line Regulation creating 'underground economy', *Sek union says*, *Cyprus Mail*, 18 April 2018.

Find new ways to work within existing frameworks

One of the great innovations that emerged from Cyprus that is now recognised as a valuable element of ‘engagement without recognition’ is the use of pre-existing recognised institutions as mechanisms for promoting interactions between disputants. While the Cypriot Government has steadfastly resisted any interaction with institutions of the Turkish Cypriot ‘state’, there has always been a pragmatic acceptance of engagement with bodies that were formed prior to the division of the island or were recognised as legitimate under the 1960 Cypriot constitution. For example, under the constitution, the main towns were permitted to have separate Greek and Turkish Cypriot municipalities. To this extent, the Greek and Turkish Cypriot mayors of Nicosia are both recognised by the Cypriot Government. This facilitated the important work done by the United Nations Development Programme (UNDP) on the Nicosia Master Plan.⁷² Likewise, other institutions, such as the Turkish Cypriot Chamber of Commerce (*Kıbrıs Türk Ticaret Odası*), which was founded in 1958, have provided vital points of contact between the two communities. Indeed, the opening up of trade across the island was only possible because of its existence as it was able to oversee the necessary certification needed by Turkish Cypriot agricultural products if they were to be exported to European markets. Given the value of this method for facilitating engagement between the two communities, it would be beneficial to explore whether there are still other areas where this approach can be adopted.

Encourage greater legislative and regulatory alignment

As well as the practical steps that can be taken to promote greater formal contact between the two communities, it is also important to find ways to prepare the sides for eventual reunification. One obvious approach would be to explore the possibility for the two sides to harmonise their laws and regulatory frameworks. To a certain extent, these activities are already taking place. For example, the European Union has been encouraging efforts to ensure that the Turkish Cypriot community aligns its laws with the *acquis communautaire*, the EU’s body of laws.⁷³ These efforts could be stepped up. As well as maintaining as much convergence as possible in terms of EU related issues and areas of competence, greater efforts could also be made to try to ensure that there is greater regulatory alignment in a range of other areas. For example, there are many areas that fall outside of the formal bounds of the EU. Of course, this again raises challenges inasmuch as it would require a degree of

⁷² For an overview of the plan by one of its key proponents, see Lellos Demetriades, ‘The Nicosia Master Plan’, *Journal of Mediterranean Studies*, Volume 8, Number 2, 1998, pp.169-176. See also, United Nations Economic Commission for Europe (UNECE), ‘Nicosia Master Plan: A Bi-Communal Initiative to Change the Image of the City’, <https://www.unece.org/fileadmin/DAM/thepep/en/workplan/urban/documents/petridouNicosiamasterplan.pdf>

⁷³ ‘Aid Programme for the Turkish Cypriot community’, European Commission, (https://ec.europa.eu/info/funding-tenders/funding-opportunities/funding-programmes/overview-funding-programmes/aid-programme-turkish-cypriot-community_en)

official interaction. But here again, there are ways and means to encourage such interaction through unofficial mechanisms, such as through civil society organisations, including business bodies. Also, meetings of the political parties may provide an opportunity to focus discussion on alignment. However, in other ways, such initiatives would not necessarily need to be based on direct contacts. The two communities could separately undertake to ensure that they adhere to international standards as closely as possible across a wide range of areas.

Explore possibilities for coordinating activities

Given the range of areas where urgent cross-island action is needed, the question of coordination becomes especially important. Here, the issue of recognition is particularly sensitive. However, in the longer term, the risks of non-engagement are even greater. Consideration needs to be given to efforts that could allow the two communities to work more closely on issues of joint importance. One idea that has been suggested is the concept of modelling settlement by allowing officials to work together on projects as a prelude to reunification. Even if it is not possible to bring together officials to work on joint activities, it should be possible to bring together politicians to discuss such challenges on a party basis. As noted, political leaders already meet under the auspices of the Slovak Embassy as part of an initiative that has run for the past two decades. This could be replicated by other missions to focus on specific issues. At a more radical end of the spectrum, such efforts could include allowing Turkish Cypriots to participate in meetings and conferences of international bodies. This could be done in several different ways. Representatives of the Turkish Cypriot community could be incorporated into official delegations of the Republic of Cyprus. Alternatively, the Turkish Cypriots could be permitted to participate in meetings in some form of observer capacity. In other cases, meetings have been organised according to the Gymnich principle. This means that no formal titles by participants nor are official symbols of statehood permitted. This allows sides that do not recognise each other to attend meetings without prejudicing their positions. Needless to say, even this requires a certain degree of acceptance by the parties concerned that the other participants have some sort of right to be there and participating in a way that could be read as signalling a degree of equality. At this stage, it is likely that Cypriot Government would push back heavily against such an option. However, when looked at from the wider perspective, it might be possible to consider certain exceptional circumstances where this might be beneficial.

Allow greater external contact with visiting international officials

The most contentious proposal is to consider ways in which the Turkish Cypriots could be granted a greater degree of international interaction. As can be seen from some of the other examples highlighted above, steps to promote greater cooperation between the communities would be immeasurably assisted if the Turkish Cypriots could take part in international meetings. These efforts would be significantly enhanced if such contacts could be broad-

ened. It is becoming increasingly common for officials from recognised states to interact with counterparts from unrecognised territories. One can point to numerous examples where diplomats and political figures of UN member states have met with senior officials from countries and entities that they do not recognise without conferring recognition by doing so. For instance, the Greek Government has in the past welcomed the Foreign Minister of Kosovo to the Ministry of Foreign Affairs in Athens. However, because the Greek Foreign Minister ensured that he restated that Greece did not recognise Kosovo, this did not amount to recognition. Likewise, Cyprus has also had high level interaction with Kosovo. For instance, in September 2013, Ioannis Cassoulides, the then Foreign Minister of Cyprus, met with the Foreign Minister and the President of Kosovo at a public venue and photographs were subsequently published of the meeting by the Kosovo Ministry of Foreign Affairs.⁷⁴ If Cyprus can do this with territories that it does not recognise without conferring recognition, then surely the same applies to other countries in their interactions with Turkish Cypriot officials. At the very least, it is important that Turkish Cypriot civil society is given greater opportunities to meet with international figures when they come to the island, as happened when Alexis Tsipras, the Greek prime minister, made his first official trip to Cyprus in 2015.⁷⁵

Look to facilitate external contacts in educational and cultural spheres

Another factor that has undermined relations between the two communities over the years is the strong opposition of the Cypriot Government to international engagement by the Turkish Cypriots in various educational and cultural spheres. Many Turkish Cypriot academics complain of being shut out of events by virtue of their position at a university based in the north. Meanwhile, and often acting in conjunction with diaspora organisations, the Cypriot government has prevented the Turkish Cypriots from hosting a range of academic, professional, sporting and cultural events. A frequently cited example of this is the number of concerts by leading international performers have been called off after extreme pressure. Indeed, the first major international artist to perform in northern Cyprus was Anastacia, in November 2010.⁷⁶ However, this only occurred after an earlier event had been cancelled following Greek Cypriot lobbying. Since then, other artists have come. However, many more continue to be put off. While such developments may appear trivial, they nevertheless have

⁷⁴ Ker-Lindsay, James (2015) 'Engagement without Recognition: The Limits of Diplomatic Interaction with Contested States', *International Affairs*, Volume 91, Number 2. For more on the interaction between the Republic of Cyprus and Kosovo see Isabelle Ioannides, 'Cyprus', in Ker-Lindsay, James and Ioannis Armakolas (editors) (2017), *Lack of Engagement: Surveying the Spectrum of EU Member States Policies towards Kosovo* (Pristina: Kosovo Foundation for Open Society).

⁷⁵ Neophytos Loizides, 'Bicommunal action in Cyprus: a force more powerful', *OpenDemocracy*, 12 March 2015.

⁷⁶ 'Anastacia to perform in KKTC despite Greek Cypriot lobby', *Today's Zaman*, 13 November 2010.

a negative effect on relations.⁷⁷ Rather than try to stop concerts and other activities, it would be more beneficial for both sides to explore ways to open up such events to members of both communities, thereby providing incentives for interaction.

Build trust by addressing the past

The past still plays very heavily in Cyprus. The events that occurred on the island in the 1960s and the 1970s remain a source of confrontation and division between the two communities. As the years pass, the very different stories of the past become ever more entrenched. In the absence of sustained contacts between the Greek and Turkish Cypriots, the official histories have taken root. There is very little understanding of the perspective of the other side, let alone any real appreciation of the suffering and hardships experienced by members of the other community. To this extent, another very important aspect of any process of greater engagement would be to find ways to encourage the two communities to work with each other. Already, there have been some notable developments in the regard. For instance, the Association for Historical Dialogue and Research (AHDR), which was founded in April 2003, has created an important range of activities and materials to help the two communities explore the island's history in a more inclusive manner.⁷⁸ More recently, the production of a joint glossary of terms for journalists working on Cyprus has been a valuable initiative.⁷⁹ Quite apart from the underlying aim of providing the media with a means of writing in a manner that is sensitive to the perspectives and perceptions of the other community, it also provides a useful tool for the wider public to think about how their use of terms reflects a particular view of the situation. Further such initiatives should be actively encouraged.

In some cases, major steps have been taken to try to address these problems. For example, following the cases brought before the European Court of Human Rights (ECHR), the establishment of the Immovable Property Commission (IPC) by the Turkish Cypriot authorities has provided a mechanism for Greek Cypriots deprived of access to their land and homes to seek compensation for their property or, in some cases, restitution.⁸⁰ However, much more needs to be done to address these outstanding issues. For example, many hundreds of people from both communities are still missing. Although considerable work has been done to address

⁷⁷ Following the decision by Jennifer Lopez to cancel a concert, Dervis Eroglu, the Turkish Cypriot leader, accused the Greeks of showing bad faith at a time when talks over reunification were at a crucial stage. 'Eroglu: Jennifer Lopez Case Shows Greek Cypriot Intolerance towards Turkish Cypriots' TRNC, Ministry of Foreign Affairs, Public Relations Department, 13 July 2010. For more on this, see, 'Anger as Jennifer Lopez set to rock north Cyprus', *AFP*, 6 July 2010. Lopez was threatened with a \$40 million lawsuit by the organisers of the event. 'Jennifer Lopez threatened with \$40-million lawsuit over Cyprus cancellation', *LA Times*, 13 July 2010. Other performers to have been deterred from performing in northern Cyprus have included Rihanna and Julio Iglesias.

⁷⁸ Association for Historical Dialogue and Research: <http://www.ahdr.info>

⁷⁹ 'OSCE launches glossary on Cyprus for journalists', *Cyprus Mail*, 10 July 2018. The Glossary is available in English, Greek and Turkish at: <https://www.osce.org/representative-on-freedom-of-media/387269>

⁸⁰ Immovable Property Commission: <http://www.tamk.gov.ct.tr>

this serious humanitarian issue by the United Nations Committee on Missing Persons,⁸¹ more needs to be done to offer the families of the missing the answers they need. By addressing these past injustices, the way will be opened for greater contacts between the two communities.

Encourage greater contacts between Cypriots abroad

A final aspect of engagement that needs to be considered concerns contacts between the Cypriot communities abroad. While building engagement and linkages between the communities on the island must be a priority, the role of the diaspora communities and their associations should not be overlooked. This is important for several reasons. First and foremost, they are often far more hard line, if not nationalistic, than the communities on the island. In large part, this is because many members of the community have fled the troubles of the past and have lost family or property in the previous eras of conflict. Additionally, separated from the day to day realities of the island, these diaspora communities are often out of touch with the prevailing conditions on the island. As a result, these organisations are often at the forefront of efforts to press their communities on the island to continue to take an uncompromising stand on the Cyprus issue. They also act as lobbyists in the country in which they are based, often contacting members of the government, members of parliament and other opinion formers. However, such groups could potentially serve as important bridges between the communities by fostering contacts between Greek and Turkish Cypriots abroad. In the face of the growing challenges on the island, and the need for greater interaction between the two communities on the island, more needs to be done to encourage the Greek and Turkish Cypriot diaspora communities to engage with each other more positively and press the international community for greater efforts to assist the efforts on the island. This also needs to be actively encouraged by the political leaders in the two communities.

Reaffirm the sides' commitment to a federal settlement

Many of the proposals cited above focus on steps that need to be taken by the Cypriot Government to actively embrace the benefits of greater engagement. This is because the key obstacles to greater engagement are centred on the question of recognition. However, the Turkish Cypriots also need to play a constructive role in any such process. While the pressure on Turkish Cypriots to refrain from engaging with Greek Cypriots is generally lower than those placed on Greek Cypriots, it does still exist. More needs to be done to challenge opponents of bicomunal engagement within the Turkish Cypriot community.

A greater problem, however, concerns the way in which contacts are often presented by the Turkish Cypriot authorities. Given the extreme sensitivities of the Greek Cypriots over recognition, any attempts to present contacts between the communities as implied recognition of the 'TRNC' or some form of legitimisation of the Turkish Cypriot authorities needs to

⁸¹ Committee on Missing Persons in Cyprus: <http://www.cmp-cyprus.org>

be resisted. The aim of the various initiatives is to keep open the avenues for discussion in the hope that this may create the conditions for a settlement. Any attempt to undermine this process by presenting engagement and linkage as evidence of growing acceptance of the Turkish Cypriots 'state' will necessarily undermine this goal. This inevitably requires a degree of self-restraint by the Turkish Cypriots. As a means of strengthening these initiatives and putting them in their proper context, the two leaders should consider issuing a joint declaration that would reaffirm their commitment to a settlement based on a bizonal, bicommunal federation in line with UN Security Council resolutions. At the same time, the declaration would also explicitly recognise the need for the two communities to engage with one another more actively as a prelude to reunification. This could be set out as a series of points that could mirror many of the ideas suggested above.

INTERNATIONAL SUPPORT FOR ENGAGEMENT

As with the settlement process, building a culture of engagement should ideally be a locally driven process. However, the international community has an important part to play as well. There are many ways this can be done. Most obviously, diplomats based on the island, as well as visiting officials, should speak as openly and directly as possible about the challenges facing Cyprus and emphasise the need for greater contacts between the two communities. Likewise, more financial and technical support should be given to activities that promote greater contact between the communities. Equally, foreign representatives based on the island, or governments willing to encourage Cyprus settlement efforts, should not allow themselves to be silenced by bullying or intimidation – as has too often happened in the past. In pursuing these activities, external actors should continue to emphasise that their efforts do not amount to recognition, nor are they aimed at the creeping normalisation of northern Cyprus. Likewise, they must emphasise that their willingness to assist the Turkish Cypriots is directly linked to continuing Turkish Cypriot commitment to settlement efforts.

However, the single most powerful step the international community can take to support the process of engagement would be to directly link engagement to ongoing UN support for the settlement process. It is already recognised that there is growing scepticism in the United States about the value of supporting a UN peacekeeping mission without any indication that this is supporting settlement efforts. This raised concerns that UNFICYP may not be renewed beyond 2019. While such fears appear to have diminished recently, such a step would be a very dangerous and should not be encouraged. Nevertheless, there is a degree of sympathy towards the underlying sentiments behind the threat. After more than five decades, how long are peacekeeping and peace-making efforts expected to continue without success? To this extent, there would seem to be room to make greater engagement between the two communities a central requirement for the continuation of future UN peace making and peacekeeping efforts.

Fortunately, there is evidence that this starting to happen. The United Nations is becoming increasingly vocal about the need for greater contacts between the sides. For example, UN Security Council Resolution 2453 urged,

the sides to step up their efforts to promote intercommunal contacts, reconciliation and the active engagement of civil society, including bi-communal initiatives and development projects where the two communities can work together and jointly benefit, and the encouragement of cooperation between economic and commercial bodies and to remove all obstacles to such contacts, while also noting various initiatives to bring together particular sectors or actors on both sides for dialogue.

In his report issued in July 2019, the UN Secretary-General went even further by highlighting the extent to which questions over recognition were hampering efforts to promote intercommunal activities and foster the climate for reunification. Significantly, he stated that, 'concerns about recognition should not in themselves constitute an insurmountable obstacle to increased cooperation.'⁸² Building on this, the UN Security-Council also emphasised the need for the sides to strengthen the interaction of the communities. Resolution 2483, which was passed on 25 July 2019, repeated the calls to step up activities that had been made earlier in the year. However, it also took the unprecedented step of "encouraging",

the leaders of the two communities to provide written updates to the Good Offices Mission of the Secretary-General on the actions they have taken in support of the relevant parts of this resolution with a view to reaching a sustainable and comprehensive settlement, and *further requests* the Secretary-General to include the contents of these updates in his Good Offices report;

At present, it is unclear how the sides will respond to this call. One hopes that it will produce meaningful results. However, if the sides cannot show that they are willing to act voluntarily, then perhaps it will be necessary to create a formal reporting mechanism. This would require evidence that the two sides are committed to paving the way for reunification and that they are taking tangible steps to encourage interaction. For example, the UN Secretary-General could be instructed by the Security Council to produce an annual report that highlights the extent of contacts between the sides. This could highlight new initiatives that have been established, and also indicting where examples of intimidation – whether by official bodies or from other parts of society, including the media – have been recorded, and where examples of intimidation have been addressed, or perhaps gone unchallenged, by authorities. While such a reporting mechanism would be valuable, it would still be better to require the sides themselves to produce their own reports carefully outlining the efforts they have taken to promote the benefits of reunification, challenge anti-settlement sentiment, and actively promote contacts between the communities. The advantages of such a self-reporting mechanism is that it would remove claims of bias against the United Nations and would create a culture of positive reporting that would encourage the sides to highlight the constructive steps they have taken. This would be a welcome change from the current focus on the talks process that has tended to see the sides focus on blaming the other side for a lack of progress towards a settlement. Either way, in the absence of productive voluntary steps by the sides to show a genuine commitment to greater intercommunal contacts, the introduction of a formal reporting mechanism of some sort would act as a powerful mechanism to promote greater engagement.

⁸² 'Mobile phone links established between two sides', *Cyprus Mail*, 11 July 2016.

CONCLUSION

For the past six decades, the international community has sought to find a solution to the so-called Cyprus Problem. Following the collapse of the most recent settlement effort, there is a sense that Cyprus is now at a turning point. The status quo is increasingly untenable. Turkey is undergoing enormous and unpredictable changes. Whereas once it was closely aligned to the West, that relationship is in flux. Although it nominally remains a candidate for EU accession, few if any observe believe that this is a realistic prospect any longer. Meanwhile, Turkey is also increasing its influence over the Turkish Cypriot community. Although this had always been the case, it is now accelerating. Turkish Cypriots report their growing fears over the consequences of this. They see what is happening in Turkey and fear that their traditions and separate identity is coming under greater threat. This could have potentially catastrophic implications. As one Turkish Cypriot commentator succinctly put it:

The demographic, social, religious, cultural, economic and political alteration in the north will totally change the dynamics of the Cyprus problem. Before long, Greek Cypriots will become neighbours with a completely different, religious, conservative and nationalist population. Turkish Cypriots will not be at the negotiation table, and at this speed of land development in the hands of Turkish capital, there will soon be no land to return. The porous 180km buffer zone will effectively turn into a land border with Turkey.⁸³

For all these reasons, urgent steps are needed to keep the possibility of a Cyprus settlement open. This requires greater engagement between the two communities.

The problem is that such efforts are hindered by the strong concerns that any initiatives to end the isolation of the Turkish Cypriots will reduce their willingness to reach an agreement. Such concerns, while to a degree understandable, are nevertheless overstated. For a start, no one would suggest that greater interaction should be a justification for the recognition of the 'Turkish Republic of Northern Cyprus'. Resolutions 541 and 550 remain in force. The purported secession has also been deemed illegal by the International Court of Justice. Likewise, the European Court of Human Rights has ruled that northern Cyprus is a

⁸³ Esra Aygin, 'Greek Cypriots seem blithely unaware of the risks in non-solution', *Cyprus Mail*, 7 October 2018.

subordinate administration of Turkey. Moreover, there are plenty of legal safeguards that remain in place that can prevent the Turkish Cypriots from gaining recognition. At the same time, the Cypriot government also needs to weigh up the costs of not engaging with the Turkish Cypriots or allowing others to do so. Again, the status quo is unsustainable. Rather than make the Turkish Cypriots more pliable and amenable to a settlement, the current policies are only feeding their alienation and providing a way for Turkey to increase its influence over the north of the island. All things considered, there is now a compelling case to be made that more needs to be done to engage with the Turkish Cypriot community – not as a means to accept the existence of the TRNC, but to keep open the possibility of an eventual settlement.

In this context, the concept of engagement without recognition provides a framework for greater interaction. There are any number of steps that could be developed between the communities. However, it requires a fundamental rethinking of the way in which interaction is understood. A culture of engagement needs to be cultivated. Political leaders, rather than viewing interaction as a threat, need to actively encourage links between the communities. This not only means being seen to take the lead themselves, but also offering overt political support and funding for such activities, and by openly confronting those elements of society who remain opposed to such contacts. In terms of practical steps, more needs to be done to ensure that existing agreements, such as the opening of crossing points, are implemented. At the same time, ways need to be found to increase the scope and intensity of contacts across the dividing line across a variety of different fields, from commerce to culture. This can be done by taking a more flexible approach to issues of recognition as well as working more actively with bodies and organisations that do not pose a threat in this regard. As has been shown, there are many ways in which a greater degree of engagement can be facilitated without acknowledging the 'TRNC' or otherwise prejudicing the sovereignty of the Republic of Cyprus as the internationally recognised authority on the island. As noted, recognition cannot be accidental. Nor is there any sense that after so many decades the Republic of Cyprus is giving up its sovereign claim to the north. This also means that a more forgiving approach should be taken towards Turkish Cypriot efforts to engage with the outside world.

Efforts to promote engagement are about political will and recognising the imperative of keeping reunification hopes alive. However, while it would be good to think that many of these initiatives could be initiated voluntarily, the reality is that there is a strong body of opinion within both communities that remains fundamentally opposed to the idea of interaction. The international community therefore needs to play its part in encouraging such activities. Most importantly, it needs to re-evaluate how it judges the settlement process. Settlement efforts should no longer be judged solely on the willingness of the sides to engage in reunification talks. In future, the sides should be judged on their willingness to engage with each other and create the wider conditions for reunification and future cohabitation.

For over fifty years, the international community, led by the United Nations, has attempted to find a settlement to the so-called Cyprus Problem. Following the collapse of the latest talks in 2017, there is real concern that the island is now drifting towards a permanent and irrevocable division as the communities become ever more estranged. To this end, urgent steps are needed to try to forge greater contacts between Greek and Turkish Cypriots. However, many initiatives are being held back over fears of recognition. This report argues that such concerns, while understandable, are threatening to make reunification impossible. Building on a growing understanding in academic and policy circles that the concept of 'engagement without recognition' is a valuable tool of conflict management in secessionist disputes, the report outlines a number of tangible steps that can be taken to promote a 'culture of engagement' between the island's communities. These range from making the political case for greater communal interaction and offering official funding such activities through to implementing already agreed initiatives and addressing the legacy of the past. While such steps should be locally driven, the international community has a crucial part to play. In future, the leaders of the two communities should not merely be judged on their willingness to engage in settlement negotiations. They should also be judged on their willingness to create the wider conditions for reunification and future cohabitation.

ISBN 978-82-343-0033-2 (print)



The report can be ordered from:
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